

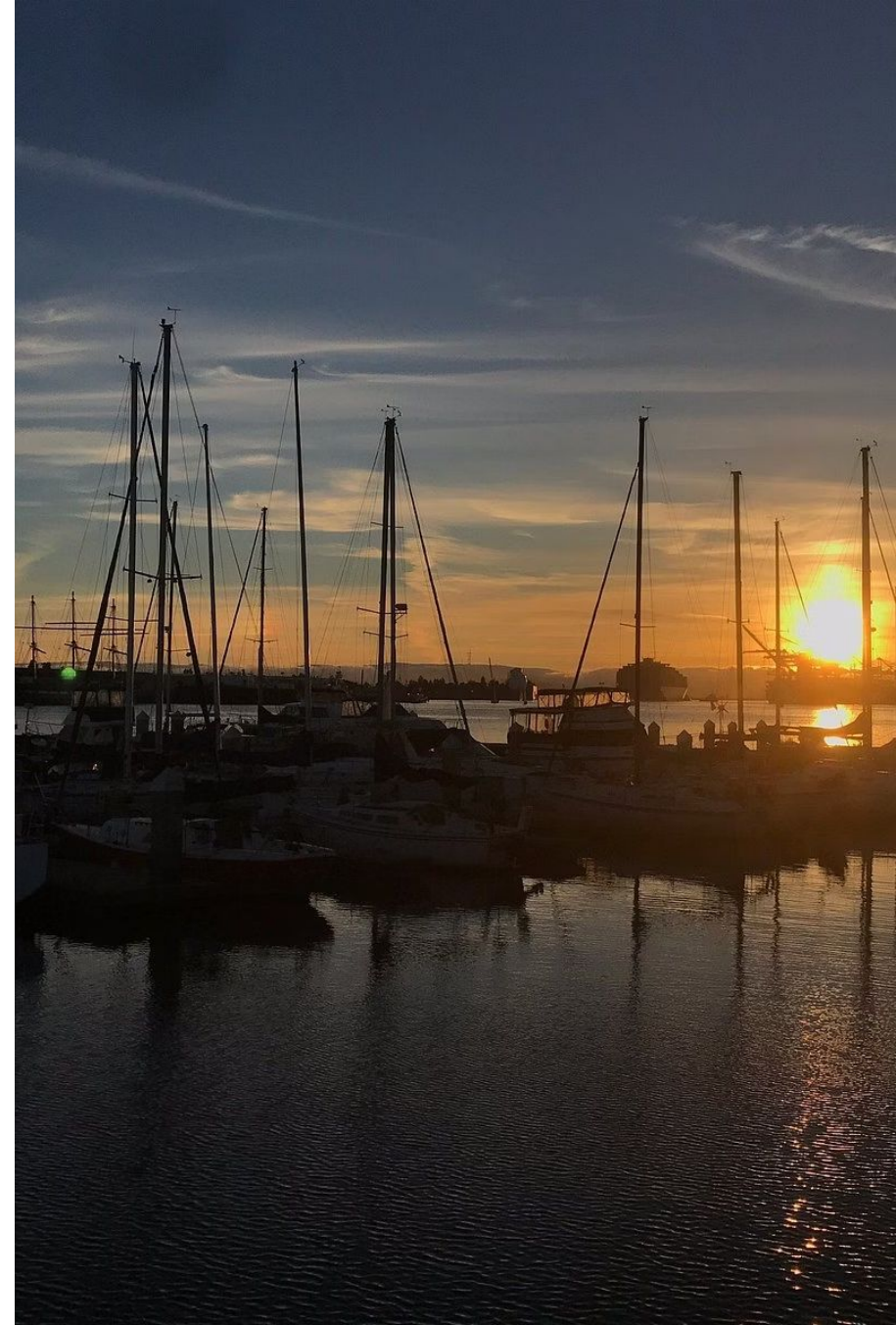
The Case for Reparations: African Americans in Oakland, California and Alameda County

A Forensic Brief by the Negro Research Institute

This presentation lays out in meticulous, irrefutable detail the historical, legal, and economic case for why African Americans in Oakland, California and Alameda County are owed reparations. From the redlining of West Oakland and the Fruitvale district — neighborhoods whose HOLC "hazardous" designations still define the racial geography of the city today — to diesel contamination and carcinogenic pollution choking a historically Black community for decades, from racially disparate policing under federal oversight to systematic exclusion from the shipyard and port industries that built this city — this is the full record. The evidence is overwhelming. The debt is real. The time is now.

NEGRO RESEARCH INSTITUTE

OAKLAND REPARATIONS CASE



Opening Argument

The Case Is Airtight

The Perry Mason Standard

In the tradition of the great courtroom architect Perry Mason, we do not merely allege — we **prove**. Every claim in this brief is grounded in public record, government documents, academic research, and lived testimony. The perpetrators are named. The damages are quantified. The verdict is clear.

What This Brief Covers

- The Great Migration and the Promise of Oakland
- Redlining, displacement, and the West Oakland 7th Street corridor
- Discriminatory policing and incarceration
- Environmental racism: West Oakland diesel pollution, Schnitzer Steel, Port of Oakland, and toxic soil contamination
- Institutional negligence by city, county, state, and corporate actors
- A full accounting of damages owed



The Great Migration: A Promise Made

Between 1940 and 1970, hundreds of thousands of African Americans migrated from the Jim Crow South to Northern and Western cities in search of freedom, dignity, and economic opportunity. Oakland — the gateway to the Pacific, home to the Kaiser Shipyards and a booming port economy — beckoned as a city of promise. California had a powerful pull: it was a free state, distant from the terror of the Deep South. In the first four years of World War II alone, Oakland's Black population grew from 8,462 in 1940 to more than 47,000 by 1950. By 1980, Black Oaklanders made up nearly 47% of the city's population — the 20th-century peak. They came. They worked. They built. And then the city systematically dismantled everything they constructed.

Who Was Here and Why It Matterred



Shipyard and Defense Workers

Tens of thousands of Black workers labored in Oakland's wartime Kaiser Shipyards and other defense industries during World War II, powering the U.S. war machine. Despite President Roosevelt's Executive Order 8802 banning discrimination, Black workers faced exclusion from trade unions, advancement, and pension protections their white counterparts received. The Boilermakers Union forced Black workers into segregated "auxiliary" locals — Local A-26 — that denied them equal dues and representation, even while profiting from their labor.



Homeowners and Community Builders

Black families established homeownership and community along West Oakland's 7th Street corridor — Oakland's historic "Harlem of the West." Jazz clubs, Black-owned banks, pharmacies, barbershops, and civic organizations flourished there. The intersection of 7th Street and Wood Street became the commercial and cultural heart of Black Oakland, predating any city-sponsored development in the area. West Oakland at one point housed nearly 80% of Oakland's Black population.



Longshoremen, Railroad, and Industrial Labor Force

Black Oaklanders formed the backbone of the city's mid-century industrial economy — as Pullman porters, longshoremen at the Port of Oakland, and workers in railyards and manufacturing plants — yet were systematically excluded from trade unions, supervisory positions, and the pension structures that white counterparts enjoyed. The wealth their labor created flowed almost entirely to white-owned institutions while the communities they built were deliberately destroyed.

The 7th Street Corridor: Oakland's Black Heart, Destroyed

West Oakland's 7th Street corridor was the cultural and commercial center of Black Oakland — the "Harlem of the West." Home to legendary jazz clubs like Slim Jenkins' Supper Club and Esther's Orbit Room, Black-owned banks, pharmacies, grocery stores, and a dense residential community, it was a model of self-determination. Then, under the cover of "urban renewal" and highway construction, city planners and federal programs systematically demolished this Black neighborhood. Between 1960 and 1966, urban renewal, freeway construction, and BART construction destroyed over 7,000 housing units in Oakland — almost 5,100 in West Oakland alone. The Cypress Freeway sliced through the heart of the community in 1957. Residents called it what it was: **Negro Removal**.



Urban Renewal and Highway Destruction: A Timeline

1937

HOLC redlines West Oakland, Fruitvale, and the East Oakland flatlands, designating Black neighborhoods as "hazardous." HOLC notes explicitly cite the "infiltration" of "Negroes and Orientals" as negative influences. Banks deny mortgage loans to Black applicants in these zones. The racial geography of Oakland is locked in place for generations.

1957–1970s

The Cypress Freeway (I-880) is plunged through West Oakland, displacing Black families. More than 800 businesses are shuttered, 2,500 Victorian homes demolished, and nearly 5,000 households displaced. BART's above-ground elevated tracks are run through 7th Street — undergrounded in wealthier Berkeley and San Francisco — killing the commercial corridor.

2007–Present

The subprime mortgage crisis devastates Oakland's Black flatlands neighborhoods, with over 35,000 homes foreclosed between 2007 and 2012. The City of Oakland files suit against Wells Fargo for predatory lending targeting Black and Latino borrowers. The Alameda County Reparations Commission holds its first meeting in November 2023 — but the process moves slowly while harms compound.

1

2

3

4

5

1950s

Federal Housing Act accelerates urban redevelopment. Thousands of Black families in West Oakland face housing pressure, displacement, and denial of FHA-backed mortgages available to white families in newly developed East Bay suburbs. In 1949, the entire West Oakland neighborhood is officially declared "blighted" by the Oakland City Council.

1970s–2000s

Schnitzer Steel, the Port of Oakland, and industrial facilities concentrate carcinogenic diesel pollution and toxic heavy metals in West Oakland — a predominantly Black community. Cancer risk from air toxics in some zones near the Port reaches 346 per million people. Black children in West Oakland are admitted to emergency rooms for asthma at rates far exceeding the county average.

Redlining: The Federal Crime That Stole Black Wealth

Oakland as Ground Zero

In 1937, the Home Owners' Loan Corporation (HOLC) produced a "residential security map" of Oakland that color-coded West Oakland, Fruitvale, and the East Oakland flatlands as "hazardous" — the lowest grade, designated red. HOLC notes on Oakland's redlined zones explicitly cited the "infiltration" of "Negroes and Orientals" as a negative influence. In every redlined zone, federally backed mortgage loans were denied to Black applicants. The racial map of present-day Oakland corresponds almost exactly to the 1937 HOLC map — a pattern documented by researchers at the University of Richmond's Mapping Inequality project. West and East Oakland flatlands neighborhoods, once entirely redlined, remain today the city's most economically distressed and most environmentally burdened communities.

The Compounding Theft

By denying Black families access to federally subsidized mortgages — the very tool that built the white middle class — the federal government and City of Oakland ensured that Black families could not accumulate generational wealth through homeownership. Racially restrictive covenants, such as the Lakeshore Homes Association's dating from 1917, explicitly barred selling or renting to Black or Asian residents until rendered unenforceable by federal law. During heat waves, historically redlined Oakland neighborhoods run more than 12°F hotter than areas once marked "desirable" — a measurable, present-day consequence of federal housing policy.

The Theft of Generational Wealth

Had Black families in West Oakland and the East Oakland flatlands been permitted to purchase homes under the same FHA terms extended to white families in the 1940s and 1950s, and had those homes appreciated at even the median Oakland rate, those families would today hold substantial equity that was systematically denied them. Instead, they were forced to rent, forced to move, and forced to watch their neighborhoods deteriorate under the weight of highway construction, industrial zoning, and municipal disinvestment. This is not speculation — this is arithmetic. The redlined flatlands of West and East Oakland, stripped of their Black homeownership base by HOLC and urban renewal, now face a second displacement: the tech-driven gentrification that has pushed Oakland's Black population from nearly 47% in 1980 to approximately 22% in 2024. Between 2007 and 2012 alone, over **35,000 Oakland homes were foreclosed**, concentrated in the same flatlands neighborhoods that were redlined in 1937 and targeted by predatory lenders in the 2000s. The connection is documented and direct.



The West Oakland Environmental Racism Crisis: A Crime Scene

Built on a Toxic Foundation

West Oakland — Oakland's historically Black flatlands community, bordered by three major freeways (I-880, I-980, I-580) and the Port of Oakland — is one of the most pollution-burdened communities in California. Diesel particulate matter from Port of Oakland truck and ship traffic, Schnitzer Steel's metal shredding operations, and industrial facilities releases carcinogenic toxics into the air, soil, and water of a community that is 70% people of color. The cancer risk in some zones near the Port reaches 346 per million people — more than three times the acceptable threshold.

Decades of Documented Harm

The California Environmental Protection Agency has designated West Oakland a "disadvantaged community" — among the worst-burdened in the state. The West Oakland Environmental Indicators Project (WOEIP) has documented significantly higher emissions of fine particulate matter, ozone, and air toxics in West Oakland compared to surrounding Alameda County. Schnitzer Steel — identified by the EPA as a top polluter of the top 20 air toxics in terms of cancer risk — has operated within one mile of more than a dozen daycare centers, eight schools, four senior housing facilities, and two hospitals.

The Schnitzer Steel Settlements

In 2021, after years of community advocacy by WOEIP and regulatory investigations by the Alameda County District Attorney and California Department of Toxic Substances Control, Schnitzer Steel paid a **\$4.1 million settlement** for illegally releasing toxic air contaminants and hazardous particulates — including lead, cadmium, and zinc — into the West Oakland community and the Oakland Estuary. Despite the settlement, community air quality violations continued. On August 9, 2023, a fire at Schnitzer Steel's facility spewed a toxic plume of smoke across the entire East Bay.

Current Legal Status

As of 2024–2025, WOEIP continues to fight for tighter regulation and stronger enforcement against Radius Recycling (formerly Schnitzer Steel), with the company facing ongoing violations from the California Environmental Protection Agency. Toxic waste buried in West Oakland soil from the neighborhood's industrial history poses the next environmental threat — particularly as sea level rise could mobilize buried contamination. No comprehensive health compensation fund or community remediation trust has been established for affected Black West Oakland residents.



The Environmental Crisis: The Numbers of Harm

15yr

Life Expectancy Gap

Black people born in West Oakland are likely to die 15 years earlier than white people born in the Oakland hills, per a 2008 Alameda County Public Health Department health assessment.

346

Cancer Risk Per Million

The cancer risk for West Oakland residents near the Port reaches 346 cases per million — identified in the 2019 "Owning Our Air" Community Action Plan published by the Bay Area Air Quality Management District and WOEIP.

5x

Diabetes Hospitalization

Black West Oakland residents are five times more likely to be hospitalized for diabetes, three times more likely to die of stroke, and twice as likely to die of cancer as white residents, per Alameda County Public Health data.

\$0

Community Health Compensation

Despite decades of documented exposure, no health monitoring fund, no property compensation program, and no medical screening program has been established for the affected Black West Oakland community by the state, city, or industrial operators.

The West Oakland Industrial Corridor: Environmental Racism as Policy

West Oakland and the East Oakland flatlands did not accidentally become the most environmentally burdened communities in the region. They were made that way deliberately, systematically, and with full knowledge of the harm being caused.

Port of Oakland Diesel Pollution

The Port of Oakland — one of the largest container ports on the West Coast — generates a continuous flow of diesel emissions from ships, trucks, trains, and equipment into the predominantly Black West Oakland community. Diesel particulate matter from Port truck traffic is associated with almost half of the cancer risk for West Oakland residents. Residents within 10 miles of I-880 (the truck route to the Port) have twice the cancer risk and are nearly twice as likely to develop respiratory illness as those near I-580, where trucks are banned — a documented, racially disparate infrastructure policy.

Schnitzer Steel / Radius Recycling

Schnitzer Steel's 26-acre metal shredding facility on the West Oakland waterfront has released lead, cadmium, zinc, volatile organic compounds, and black carbon into the air and soil of a historically Black neighborhood for decades. The facility sits within one mile of over a dozen daycare centers, eight schools, and four senior housing facilities. The California Attorney General, DTSC, and Alameda County District Attorney all found violations — yet the facility continues to operate adjacent to Black residential communities.

Industrial Zoning Concentration

City and county planners deliberately zoned West Oakland and the East Oakland flatlands for heavy industrial use — rail yards, scrap metal operations, chemical storage, port logistics, and waste infrastructure — while zoning whiter, wealthier hill neighborhoods for parks, residential use, and commercial development. This pattern reflects a documented, racially disparate application of zoning authority that persisted for decades and was enabled by the same redlining that stripped Black communities of political power.

BAAQMD and the State of California: Institutional Abandonment

The Bay Area Air Quality Management District and the California Air Resources Board are not merely negligent neighbors to the Black communities of West Oakland — they are documented co-perpetrators of delayed justice. Despite decades of documented elevated cancer risk and health disparities in West Oakland, enforceable community-level air quality protections were not enacted until California's Assembly Bill 617 in 2017 — and even then, full implementation has lagged. The California Environmental Protection Agency's own data shows that West Oakland is among the most pollution-burdened ZIP codes in the state, yet regulatory agencies have repeatedly failed to enforce against the Port of Oakland and industrial polluters at the pace the health data demands. Meanwhile, Black West Oakland residents breathe air that kills them 15 years earlier than their neighbors in the hills. The state of California is both a beneficiary of West Oakland's industrial economy and, in the reparations context, a primary obligor.



Schnitzer Steel / Radius Recycling: Profit Over People in Black Oakland

A Pattern of Harm

Schnitzer Steel Industries — operating its 26-acre West Oakland facility within one mile of schools, daycare centers, and senior housing in a historically Black community — illegally released toxic air contaminants and hazardous particulates including lead, cadmium, and zinc into the West Oakland community for years. After a 2021 settlement requiring \$4.1 million in penalties and remediation, the company continued to rack up violations. A 2023 toxic fire at the facility spread contamination across the entire East Bay.

Documented Harms by Schnitzer Steel / Radius Recycling

- Released particulate matter contaminated with lead, cadmium, and zinc into West Oakland residential areas, including near a children's medical office and the Oakland Estuary
- Identified by EPA as a top polluter of the top 20 air toxics in terms of cancer risk in West Oakland
- Continued violations after the 2021 settlement, including August 2023 toxic fire spreading pollution across the East Bay
- Successfully lobbied against classification of its toxic stockpiles as hazardous waste
- Has not established any community health compensation fund or medical monitoring program for affected Black residents

Banks and the Architecture of Exclusion

1

Redlining (1930s–1960s)

Major Bay Area and national banks — including predecessors to today's Wells Fargo, Bank of America, and JPMorgan Chase — participated in or actively enforced HOLC redlining maps, denying mortgage loans to Black applicants in zones covering West Oakland, Fruitvale, and the East Oakland flatlands. Racially restrictive covenants explicitly prohibited sales to Black and Asian residents in "desirable" Oakland neighborhoods through at least the 1950s, ensuring that Black families were confined to areas the government had already designated as unfit for investment.

2

Predatory Lending (1990s–2008)

The same banks that once denied credit to Black families reversed course during the subprime era, targeting Oakland's Black flatlands neighborhoods with high-interest, adjustable-rate mortgages explicitly designed to fail. Oakland was among the hardest hit cities in the 2008 foreclosure crisis, with over 35,000 homes lost between 2007 and 2012 — concentrated in lower-income flatlands neighborhoods that had been targeted by predatory lenders, reversing decades of hard-won Black homeownership gains.

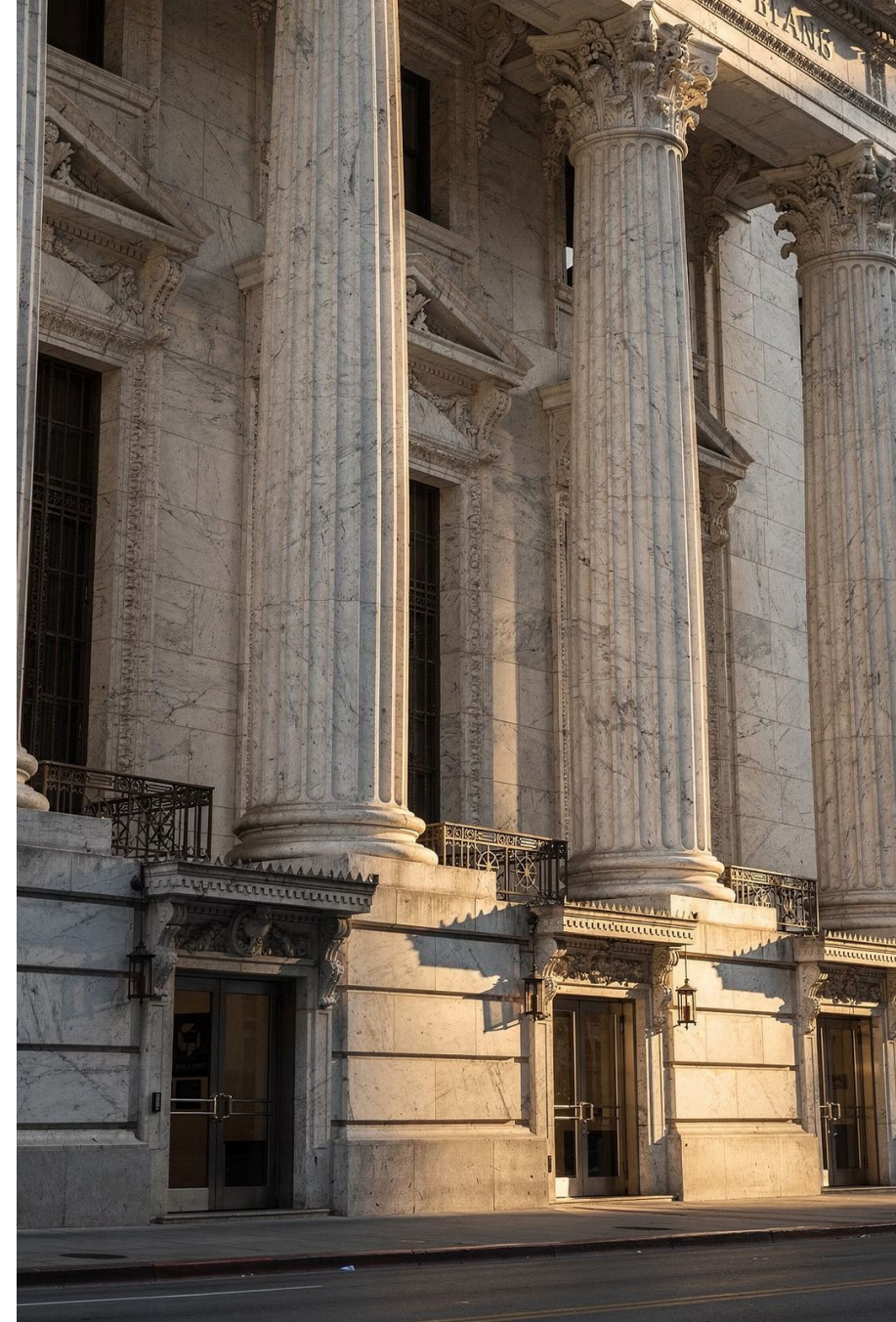
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Credit Denial Today

HMDA data continues to document that Black mortgage applicants in the Oakland-Alameda County market face denial rates far exceeding those of comparable white applicants, even at the highest income levels. The City of Oakland itself filed a federal lawsuit against Wells Fargo alleging systematic predatory lending to Black and Latino borrowers — a lawsuit that documented reverse redlining as the successor to the original practice. The architecture of exclusion persists in 2024.

Wells Fargo in Oakland: A Case of Institutional Culpability

Wells Fargo — with deep roots in the California market and headquartered in San Francisco — has paid over **\$175 million** in settlements related to discriminatory mortgage lending practices targeting Black and Latino borrowers nationally. Internal documents and employee affidavits revealed that Wells Fargo loan officers referred to subprime mortgages targeted at Black borrowers as "ghetto loans" and to their Black customers as "mud people." Wells Fargo even established a unit to recruit subprime borrowers at Black churches. These predatory products were sold disproportionately to Black Oaklanders in the flatlands neighborhoods during the 2000s. The City of Oakland filed a federal lawsuit against Wells Fargo alleging the bank "targeted blacks and Latinos, steering them toward risky, likely-to-fail loans." The resulting foreclosure wave accelerated the displacement of Black families and permanently severed thousands of households from the wealth-building power of homeownership — in a community already deeply disadvantaged by decades of redlining.



Insurance Companies: Compounding the Theft

Homeowners Insurance Redlining

Insurance companies, including State Farm, Allstate, and Farmers Insurance, have documented histories of charging higher premiums or outright denying coverage to Black homeowners in Oakland's West and East flatlands neighborhoods. Without affordable homeowners insurance, Black families were unable to protect or leverage their property assets — compounding the damage done by mortgage redlining and making the homeownership that remained even more precarious.

Business Insurance Denial

Black-owned businesses in West Oakland's 7th Street corridor and East Oakland commercial corridors were systematically denied commercial insurance or charged prohibitive rates, making it impossible to obtain business loans, commercial leases, or federal small business contracts. This strangled Black entrepreneurship at its source and prevented the rebuilding of community wealth after urban renewal destroyed the "Harlem of the West."

Life Insurance Discrimination

Historically, major life insurance companies charged Black policyholders higher premiums than white policyholders for equivalent coverage — a practice known as "race rating" that was legal until the 1950s and persisted informally for decades longer. MetLife, Prudential, and John Hancock have all faced lawsuits related to this practice. The California market was not exempt — California's Insurance Commissioner has documented such discriminatory practices in the state's history.

The Compounding Effect

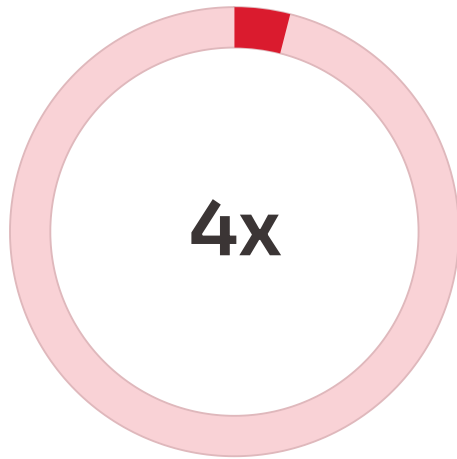
Each layer of insurance discrimination compounded the others. Without homeowners insurance, no mortgage protection. Without business insurance, no commercial financing. Without life insurance equity, no generational wealth transfer. The system was designed to ensure Black families in Oakland could never accumulate what white families took for granted — a design that has proven devastatingly effective, as the racial wealth gap in the Oakland metropolitan area remains among the most severe in the nation.



The Oakland Police Department: A Record of Disparity

The Oakland Police Department has a documented, federally-monitored history of racially disparate policing against Black residents. Placed under a federal consent decree in 2003 following documented civil rights violations, OPD has remained under federal oversight for over two decades — an extraordinary record of institutional failure. A landmark Stanford University study using big data analysis of thousands of OPD stops found that **African American men were four times more likely to be searched than white men** during a traffic stop, and that **one in four Black men were handcuffed** during pedestrian stops, compared to one in fifteen white men. Body camera analysis found OPD officers used systematically less respectful language toward Black residents. Alameda County's criminal justice system has never conducted a comprehensive audit of the economic harm imposed on Black Oaklanders through decades of racially disparate policing and prosecution.

Policing, Mass Incarceration, and Economic Devastation



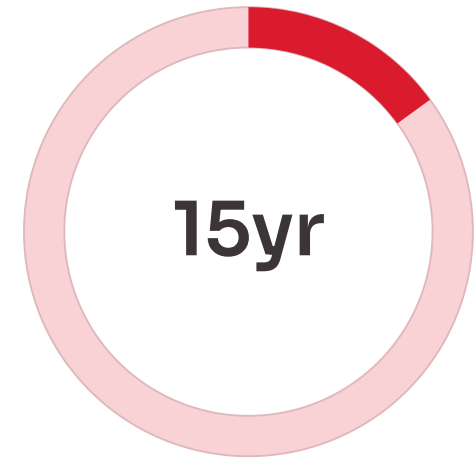
Search Rate Disparity

African American men in Oakland were four times more likely to be searched than white men during a traffic stop, per Stanford University's landmark big data study of OPD stops, even after controlling for crime rate and neighborhood demographics.



Federal Oversight

The Oakland Police Department has been under a federal consent decree since 2003 — over two decades — following documented civil rights violations. Despite 15+ years of federal oversight and data collection, racial disparities in policing have persisted, per KQED reporting.



Life Expectancy Gap

Black people born in West Oakland are likely to die 15 years earlier than white people born in the Oakland hills, per the 2008 Alameda County Public Health Department assessment — a gap driven by the combined effects of policing, environmental racism, and economic exclusion.

Every arrest, every conviction, every incarceration carries a documented economic cost. A criminal record reduces lifetime earnings by an average of 40%, per National Bureau of Economic Research data. The cumulative economic damage of discriminatory policing in Oakland — layered on top of redlining, environmental harm, and educational inequity — runs into the hundreds of millions of dollars.



The City of Oakland and Alameda County: Institutional Complicity

The City of Oakland and Alameda County are not innocent bystanders to this history. They are principal actors. City government enacted the zoning policies that concentrated industrial hazards in Black flatlands neighborhoods. City government routed I-880 and I-980 through the Black community's heart. City government ran BART's elevated tracks above-ground through 7th Street — destroying the "Harlem of the West" — rather than underground as in wealthier areas. City government's urban renewal programs demolished 5,100 housing units in West Oakland alone between 1960 and 1966 and displaced nearly 5,000 households. Alameda County has established a Reparations Commission — but that body held its first meeting in November 2023, a full eight months after the Board of Supervisors approved it, and has moved slowly while harms compound. Oakland is both perpetrator and — in the reparations context — a primary obligor.

The Black Panther Party and the Erasure of Black Civic Achievement



A National Movement, Born in Oakland

In October 1966, Huey Newton and Bobby Seale founded the Black Panther Party for Self-Defense in Oakland — born directly from the frustrations of urban renewal displacement and racially discriminatory policing. The Party's Free Breakfast for Children Program, community health clinics, and legal defense programs emerged to fill gaps the City of Oakland had deliberately created through its destruction of the Black West Oakland community. The Party was surveilled, infiltrated, and dismantled by the FBI's COINTELPRO program, which Oakland's own city government cooperated with.



A Community Built — Then Undercut

Black Oakland built a civic infrastructure of churches, jazz clubs, labor unions, and mutual aid organizations — under conditions of segregation enforced by government policy. The 1946 Oakland General Strike, in which Black workers played a key role, helped launch the post-war labor movement. The African American Longshoreman's Hall anchored West Oakland community life. The same city that allowed these achievements simultaneously redlined, displaced, and environmentally poisoned its Black community.



Oakland's Response

As of 2025, while the Alameda County Reparations Commission has produced a 170-page action plan going before the Board of Supervisors, the City of Oakland itself has passed no binding reparations ordinance and made no direct payments to Black Oaklanders for the documented destruction of their community. The contrast with the civic courage shown by Black Oaklanders — from the 1946 general strike to the Black Panther Party to the WOEIP's environmental justice fight — could not be more stark.

Chapter Break

The Corporate Actors

Beyond government, a constellation of corporations — shipyard operators, railroads, port industries, financial institutions, and metal processors — directly profited from the exploitation and displacement of Black Oaklanders. Their liability is specific, documented, and substantial.

CORPORATE ACCOUNTABILITY



Kaiser Industries and the Shipyards: Profiting from Excluded Labor

Oakland was the gateway to the Pacific War economy, and Black workers were integral to building that reputation — while being systematically excluded from its rewards. Henry Kaiser's shipyards recruited Black workers from across the South with promises of opportunity, then confined them to segregated "auxiliary" union locals — Local A-26 of the International Brotherhood of Boilermakers — that denied them equal dues representation, grievance rights, and pension protections afforded to white union members. The Boilermakers' mainline union refused to accept Black workers as full members for years. When Black workers filed a lawsuit against the Boilermakers for this discriminatory treatment, Kaiser Shipyards management declined to enforce their contracts against the union. The industrial wealth of World War II Oakland was built in substantial part on Black labor — and Black workers were then excluded from the apprenticeship programs, pension benefits, and advancement pathways that built white middle-class wealth in this city.

The Port of Oakland: Environmental Sacrifice in Black Oakland

The Structural Injustice

The Port of Oakland — one of the largest container ports on the West Coast — was built and expanded adjacent to West Oakland, a historically Black community, over the objections of residents who bore the full environmental burden of port operations. Diesel emissions from Port truck and ship traffic account for almost half of the cancer risk for West Oakland residents, per the 2019 "Owning Our Air" Community Action Plan. The cancer risk in zones nearest the Port reaches 346 per million — three times above acceptable levels.

The Disparate Infrastructure Policy

I-880 — the truck route to the Port — runs directly through West Oakland's Black flatlands. Trucks over 4.5 tons have been banned from I-580, which runs through the predominantly white Oakland hills, since 1951. This explicit policy decision — made before I-580 was even designated an interstate — ensures that the health burden of port-related trucking falls entirely on the Black flatlands community. The tale of two freeways is a documented, racially disparate infrastructure policy with compounding health consequences over 70 years.

The Human Cost

Black people born in West Oakland die 15 years earlier than white people born in the Oakland hills. They are five times more likely to be hospitalized for diabetes, three times more likely to die of stroke, and twice as likely to die of cancer. Children in West Oakland are more likely to be admitted to the emergency room for severe asthma than other children in Alameda County. These are not natural disparities — they are the measurable, preventable product of deliberate infrastructure and zoning decisions that concentrated industrial hazards in Black communities.

The Accountability Gap

Despite decades of documented harm and the California Environmental Protection Agency's designation of West Oakland as a "disadvantaged community," the Port of Oakland has never established a community health compensation fund, a medical monitoring program, or a reparative fund for affected Black residents. The Port is now seeking to expand its capacity for megaships — a plan that Earthjustice argues would further increase pollution in an already-devastated community.

The West Oakland Pollution Crisis: "You're On Your Own"

A Structural Insult

For decades, West Oakland and the East Oakland flatlands — the areas where Black communities grew up around the port, rail yards, and industrial operations — have borne the full environmental burden of the city's industrial economy. The cancer risk from air toxics near the Port of Oakland reaches 346 cases per million people in some zones. Despite this, regulatory agencies failed for decades to enforce meaningful protections, and the California state government did not enact community-level air quality plans until AB 617 in 2017 — years after the health data made the crisis undeniable.

Documented Impacts

- Black West Oakland residents die 15 years earlier than white residents of the Oakland hills, per Alameda County Public Health data
- Cancer risk in zones near the Port reaches 346 per million — above three times acceptable levels
- Diesel particulate matter from Port traffic accounts for almost half of cancer risk for West Oakland residents
- Schnitzer Steel repeatedly violated its 2021 environmental settlement, including a 2023 toxic fire that spread contamination across the East Bay
- Toxic waste buried in West Oakland soil from the neighborhood's industrial history threatens groundwater contamination as sea levels rise
- Community demands for medical monitoring, health compensation, and faster remediation have gone unmet for decades



California's and Oakland's Obligation to West Oakland

The California Department of Toxic Substances Control, the Bay Area Air Quality Management District, and the City of Oakland are not merely negligent neighbors — they are direct beneficiaries of the racial geography created by redlining and urban disinvestment. Because Black residents were concentrated into the flatlands by redlining and displacement, the state and city were able to locate undesirable infrastructure — rail yards, industrial facilities, port operations — in communities with reduced political power to resist. The state's own data documents elevated cancer rates, reduced life expectancy, and asthma hospitalization rates far above the county average for West Oakland. What remains is the establishment of a formal remediation fund, a community health trust, and direct payments to residents who have lived adjacent to or above contaminated industrial sites. Margaret Gordon, co-founder of WOEIP, has stated clearly: *"The reparation movement is the next level of civil rights. We should not be in a position of just surviving."*

The War on Black Businesses: A City-Level Record

The 7th Street Business Corridor

The intersection of 7th Street and Wood Street — the "Harlem of the West" and commercial heart of Black Oakland — was destroyed by a combination of redlining, urban renewal pressures, the routing of the Cypress Freeway through West Oakland, and the above-ground BART station whose elevated tracks and noise killed foot traffic and deterred customers. This period of "urban renewal" during the 1960s and 1970s shuttered more than 800 businesses and demolished 2,500 Victorian homes — the wealth infrastructure of Black Oakland, destroyed by government policy.

Licensing and Permit Discrimination

Black business owners in Oakland faced systematic discrimination in the issuance of business licenses, health permits, and construction approvals through the mid-20th century. City inspectors applied standards selectively, imposing requirements on Black businesses that were waived for comparable white-owned establishments, further handicapping Black commercial development in the West and East Oakland corridors.

Contract Exclusion

For most of the 20th century, Black-owned firms were effectively excluded from city, county, and port contracting opportunities. The wealth generated by Oakland's massive post-war port expansion, public works programs, and BART construction flowed almost entirely to white-owned firms, compounding the capital gap between Black and white business communities in this city.



The Education System: Separate and Unequal

Oakland Unified School District maintained de facto segregation through racially gerrymandered attendance zones and chronic underfunding of flatlands schools well into the 1970s and beyond — despite the Supreme Court's 1954 ruling in *Brown v. Board of Education*. Black students were concentrated in underfunded schools in the flatlands with less experienced teachers, deteriorating facilities, and fewer college preparatory resources. When school integration efforts came, Black students disproportionately bore the burden of busing and transition. Today, Oakland Unified's Black student population faces documented disparities in graduation rates, test scores, advanced placement access, and discipline — disparities that trace directly to decades of deliberate underinvestment in flatlands schools. The educational debt owed to Black Oaklanders — measured in foregone earnings, reduced professional mobility, and intergenerational opportunity loss — is among the largest single line items in the reparations calculation.

Educational Inequity: The Economic Calculation

40yr+

School Disinvestment

West Oakland and East Oakland flatlands schools were chronically underfunded for more than four decades after Brown v. Board of Education — a period during which Black students received systematically inferior educational resources compared to students in Oakland hills and Alameda County suburbs.

\$1.2M

Lifetime Earnings Lost

Each 10 percentage point reduction in graduation rates corresponds to approximately \$1.2 million in lifetime earnings loss per affected cohort, per National Center for Education Statistics modeling — a metric that applies directly to the documented graduation gaps at Oakland flatlands schools.

30yr

Career Lag

Black professionals who received inferior K-12 education face a documented career lag of 3–5 years relative to white peers, affecting retirement savings, social security benefits, and lifetime wealth accumulation — a compounding deficit that begins in kindergarten and extends across a lifetime.

Healthcare Inequity: The Medical Debt of Racism



Environmental Health Burden

Black Oaklanders living near the Port of Oakland, the Schnitzer Steel / Radius Recycling facility, and the historically industrial zones of West and East Oakland face documented elevated health risks including cancer, non-Hodgkin's lymphoma, stroke, cardiovascular disease, diabetes, and severe asthma. These health disparities are not natural — they are the product of deliberate environmental and infrastructure decisions that concentrated industrial hazards in Black communities, and of decades of regulatory failure to enforce against known polluters.



Mental Health Costs

Chronic exposure to discrimination, displacement, police violence, and environmental stress — including the revelation that one's neighborhood was knowingly subjected to toxic industrial pollution for decades — produces documented trauma responses. The American Psychological Association has recognized race-based traumatic stress as a diagnosable condition. The mental health costs borne by Black Oaklanders represent a quantifiable component of the reparations debt. The BART Police shooting of Oscar Grant — an unarmed 22-year-old Black man, on New Year's Day 2009 — and the protests and community trauma that followed exemplify this ongoing harm.



Life Expectancy and Asthma Gaps

Black people born in West Oakland are likely to die 15 years earlier than white people born in the Oakland hills. Children in West Oakland are more likely to be admitted to the emergency room for severe asthma than other children in Alameda County, per a 2016 Alameda County Public Health Department report. Combined with documented disparities in healthcare access and environmental burden, Black residents of West and East Oakland face measurable, preventable health deficits that are the direct product of the policies documented in this brief.

Chapter Break

The Legal Framework

Reparations are not charity. They are a legal remedy grounded in constitutional law, international human rights standards, and centuries of jurisprudence on unjust enrichment and tortious harm. The argument has been made. The courts and legislatures now must act.

LEGAL GROUNDS

The Legal Basis for Reparations: A Perry Mason Brief

The case for reparations rests on five independent and mutually reinforcing legal theories, any one of which would be sufficient to establish liability in a court of law:

1 Unjust Enrichment

The City of Oakland, Alameda County, the State of California, the federal government, and numerous private corporations were unjustly enriched by the labor, displacement, and environmental sacrifice of Black residents. The law of unjust enrichment requires disgorgement of those ill-gotten gains.

2 Tortious Harm

The discriminatory application of redlining, urban renewal, environmental contamination, and policing constitutes tortious conduct — including negligence, intentional infliction of harm, and public nuisance — for which damages are legally recoverable. Schnitzer Steel's repeated violations of its environmental settlement, causing documented health harm to a predominantly Black community, is a particularly clear example of tortious conduct with ascertainable victims.

3 Constitutional Violation

The Equal Protection Clause of the 14th Amendment prohibits racially discriminatory state action. Oakland's documented policies in zoning, highway siting, redevelopment, contracting, and education constitute per se constitutional violations for which the city and state bear remedial liability.

Legal Theories: Continued

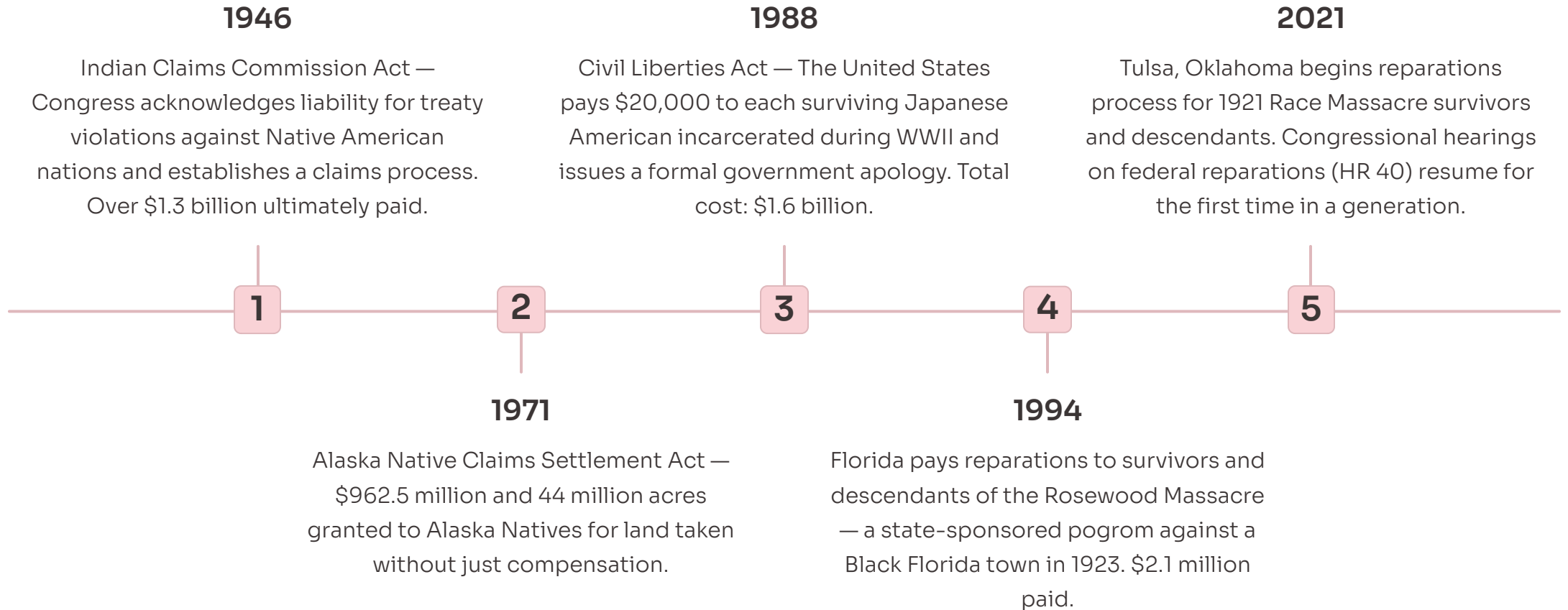
1 International Human Rights Law

The United Nations' Durban Declaration and Programme of Action (2001), ratified in principle by the United States, recognizes that slavery and colonialism constitute crimes against humanity and that affected descendants are entitled to reparative justice. The UN Committee on the Elimination of Racial Discrimination (CERD) has specifically called on the United States to make reparations to African Americans.

2 State and Federal Civil Rights Statutes

Violations of the Fair Housing Act (1968), the Community Reinvestment Act (1977), Title VI of the Civil Rights Act (1964), the Resource Conservation and Recovery Act, California's AB 617, and California state civil rights law each provide independent statutory bases for reparative claims. Many of these violations are not time-barred due to their ongoing and continuing nature — particularly environmental contamination and discriminatory lending practices that persist in HMDA data today.

Precedents: When America Has Paid Before



California Law and the Reparations Imperative

California has already established a legal and legislative foundation for reparations that no other state can match. California's AB 3121 — signed into law by Governor Gavin Newsom in September 2020 — established the nation's first state-level reparations task force, which issued its final report to the California Legislature on June 29, 2023. That report documents a comprehensive reparations plan addressing the ongoing and compounding harms of slavery and its lingering effects. Alameda County responded to this state leadership by establishing its own Reparations Commission, which in 2026 brought a 170-page action plan to the Board of Supervisors. The City of Oakland, however, has passed no binding reparations ordinance and made no direct payments. Oakland bears a direct and substantial liability to its own Black residents — liability grounded in its own housing destruction, its deliberate concentration of industrial pollution in Black neighborhoods, its racially disparate policing under federal oversight for over two decades, and its systematic destruction of the West Oakland community that built the city. The time for advisory commissions has passed. The time for action is now.

Current Events: The Fight Continues in 2024–2025

Alameda County Reparations Commission Action Plan (2026)

The Alameda County Reparations Commission — established by the Board of Supervisors in March 2023 and holding its first meeting in November 2023 — completed a 170-page action plan that went before the Board of Supervisors for a vote in July 2026. The commission was originally supposed to complete its work by July 2024; the deadline was extended as the county grappled with the complexities of reparations policy. The action plan represents the most concrete local reparations proposal in Alameda County's history — but binding implementation remains the critical next step.

Radius Recycling / Schnitzer Steel Violations (2023–2025)

In August 2023, a toxic fire at Schnitzer Steel's West Oakland facility spread contamination across the East Bay. Despite a \$4.1 million 2021 settlement requiring operational improvements, the California Attorney General warned Schnitzer in July 2023 of potential settlement violations. WOEIP continued its campaign against the polluter, with the company facing ongoing Notices of Violation from multiple federal and state agencies. As of 2025, fenceline monitoring is being installed — over decades after the community first demanded air quality accountability.

Oakland Homeownership and Displacement Crisis (2023–2024)

Oakland's Black population has declined from approximately 47% in 1980 to approximately 22% in 2024 — a catastrophic demographic collapse driven by redlining, urban renewal, the subprime foreclosure crisis, and tech-driven gentrification. The 35,000 homes foreclosed between 2007 and 2012 were concentrated in the same flatlands neighborhoods redlined in 1937. Outside investors acquired an estimated 42% of all foreclosed properties, turning major profits while Black families were displaced to far-off suburbs.

West Oakland Environmental Health Crisis (2022–Present)

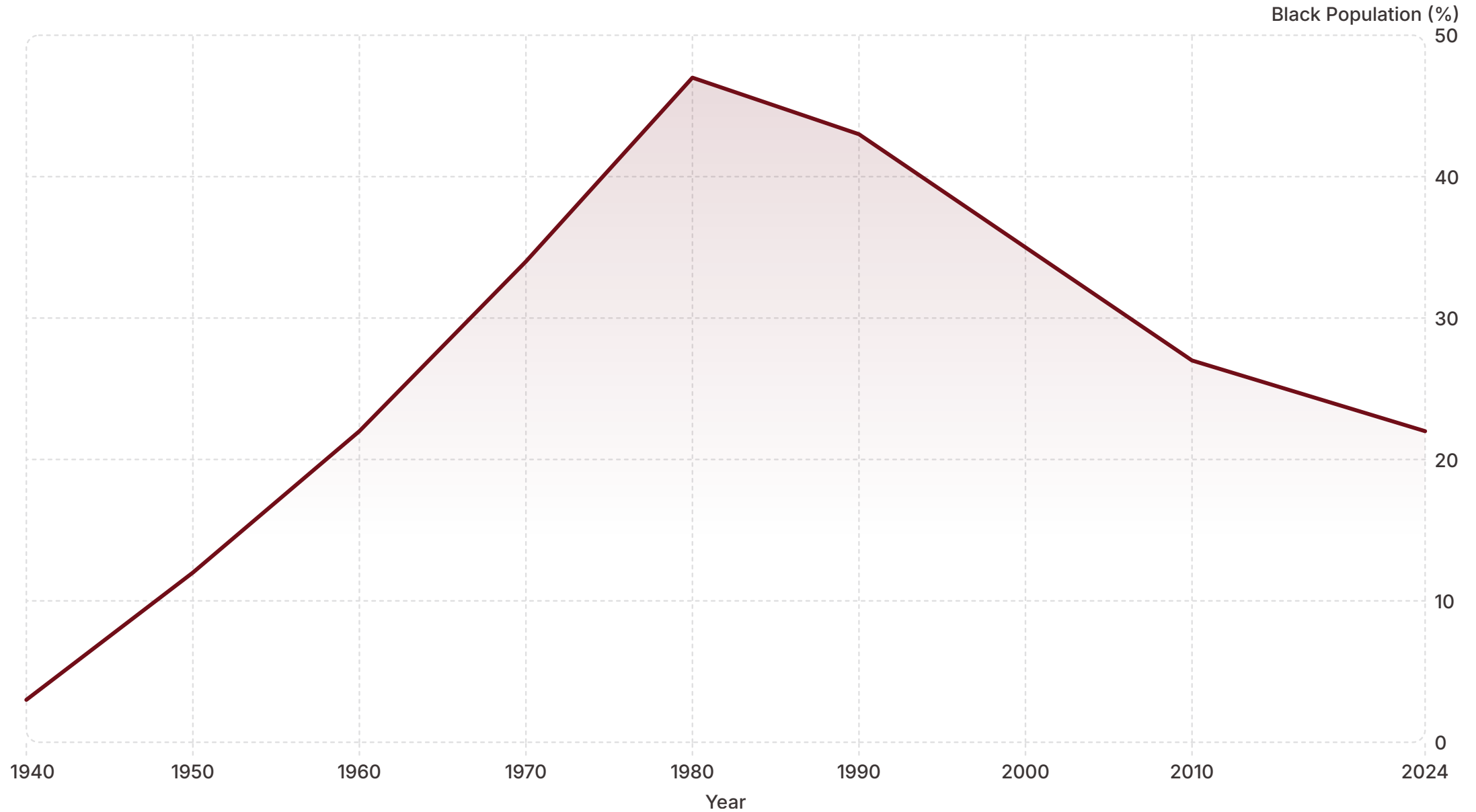
Community advocates, WOEIP, and researchers continue to document the full scope of environmental harm in West Oakland. Margaret Gordon of WOEIP stated: *"The reparation movement is the next level of civil rights. We should not be in a position of just surviving."* The state has not established a community health fund. The Port of Oakland continues to seek expansion. The health gap between Black flatlands residents and white hills residents remains at 15 years of life expectancy.

The Demographic Consequence: Black Oakland Under Pressure

The most measurable indicator of the harms documented in this brief is demographic and economic. In 1940, Black Oaklanders constituted approximately 3% of the city's population. By 1950, driven by the Great Migration and wartime industry recruitment, that figure had grown to nearly 12%. By 1980, Black Oaklanders made up nearly 47% of the city's population — the 20th-century peak. But the wealth-building potential of that community was systematically destroyed — by redlining, by highway and BART displacement, by industrial pollution, by discriminatory shipyard and port labor practices, and by insurance and banking exclusion. Today, Black Oaklanders constitute approximately **22% of the city's population** — and are concentrated in the city's most environmentally burdened, most economically depressed, most redlined ZIP codes. The question is not merely whether the numbers declined — it is why the community that built Oakland was never permitted to share in its prosperity, and instead watched helplessly as that prosperity displaced them.



Population and Homeownership: The Evidence



This chart documents the dramatic rise and devastating fall of Oakland's Black population share — a trajectory shaped entirely by policy, not demography. The peak of 47% in 1980 was followed by a long decline driven by subprime foreclosures, tech-driven gentrification, and decades of disinvestment in flatlands schools, housing, and environmental health. The communities that remain — in West Oakland and the East Oakland flatlands — are the same ones redlined in 1937, the same ones whose Victorian homes were demolished in the 1960s, the same ones breathing diesel pollution from the Port today. Reparations — including a community land trust and the right to reinvestment — are the only mechanism with the scale to reverse this trajectory.

Chapter Break

The Full Accounting

What is owed? The answer is not symbolic. It is specific, quantifiable, and enormous. Below is the Negro Research Institute's full calculation of the reparations debt owed to Black Oaklanders and Alameda County residents by category of harm.

ECONOMIC RECKONING

Category 1: Housing Wealth Stolen by Redlining

The Calculation

Oakland's West Oakland, Fruitvale, and East Oakland flatlands were systematically redlined in 1937. An estimated 15,000 Black households in Oakland and Alameda County were denied access to FHA-backed mortgages between 1934 and 1968 due to redlining. Had those families been able to purchase homes in non-redlined Oakland neighborhoods and had those homes appreciated at even the median Oakland rate — which is now among the highest in the nation — the foregone equity loss per household is catastrophic. Research by the University of Wisconsin estimates that redlining cost Black families an average of **\$212,000 per household** nationally in foregone home equity. Oakland's exceptional home appreciation makes this figure a severe underestimate locally.

Total Category 1 Liability

15,000 households multiplied by \$212,000 in foregone equity (conservative national estimate) yields a baseline housing wealth liability of **\$3.2 billion**. Adding compound interest at the federal judgment rate from the midpoint of redlining (1951) to 2024 (73 years at 4.5%) yields a total present value liability of approximately **\$9.7 billion** for housing wealth destruction alone.



This is a conservative estimate using national averages. An Oakland-specific appreciation analysis — accounting for one of the nation's fastest-appreciating housing markets — would produce a substantially larger figure.

Category 2: Business Destruction and Exclusion

800+

Businesses Destroyed

More than 800 Black-owned businesses on the 7th Street corridor and throughout West Oakland were shuttered during the 1960s–1970s urban renewal period — the direct result of redlining, highway displacement, BART construction, and the denial of commercial financing.

\$8.5M

Average Business Value (2024)

Conservative 2024 present value of a mid-20th century neighborhood business with real estate, inventory, and goodwill, adjusted for inflation and compounding — and significantly understated given Oakland's skyrocketing commercial real estate values.

\$6.8B

Total Liability (est.)

Estimated Black business destruction and exclusion in Oakland — from redlining denial of business credit, highway and BART demolition of the 7th Street commercial corridor, contract exclusion, and insurance discrimination — before interest and consequential damages.

\$21B

With Compound Interest

Applying the federal judgment rate from 1960 to 2024 (64 years at 4.5%) yields a total present value business destruction and exclusion liability of approximately \$21 billion.

Category 3: Urban Renewal and Highway Displacement

The Base Numbers

The routing of I-880 and I-980 through West Oakland, combined with the above-ground BART construction through 7th Street and the systematic urban renewal demolitions of the 1960s and 1970s, displaced thousands of Black families from their homes and commercial properties. Between 1960 and 1966, urban renewal, freeway construction, and BART construction destroyed over 7,000 housing units in Oakland, almost 5,100 in West Oakland alone — with minimal compensation to displaced residents.

Displacement Liability Calculation

- Estimated 5,000+ homes in West Oakland and the East Oakland flatlands subjected to demolition, highway displacement, or forced relocation; average 2024 Oakland replacement value: \$750,000+ each
- Gross property liability: \$3.75 billion+
- Less nominal compensation paid: substantially below market value, further depressed by the very redlining that had suppressed those values
- Compounded from 1963 midpoint to 2024: approximately \$14 billion
- Add relocation disruption, lost equity growth, and forced rental premium paid over 61 years: additional \$2 billion estimated
- **Total Category 3 Liability: approximately \$16 billion**

Category 4: Environmental Harm — Diesel Pollution and Industrial Contamination

Medical Monitoring and Treatment

The cost of lifetime medical monitoring and treatment for the estimated 45,000+ residents of West Oakland exposed to elevated cancer-risk air pollution from Port of Oakland operations and Schnitzer Steel / Radius Recycling for decades. Using standard EPA environmental health damage calculations, and applying the documented 15-year life expectancy gap: estimated total cost of **\$2.5 billion**.

Property Value Suppression

Industrial zoning, Superfund-adjacent contamination, and chronic air pollution have suppressed property values in the affected West Oakland and East Oakland flatlands neighborhoods. Applied to approximately 15,000 residential properties at an estimated suppression of 15–25%, this yields a property value loss of approximately **\$2.1 billion**.

Full Remediation Cost

The cost of completing toxic site remediation in West Oakland, addressing buried soil contamination from the neighborhood's industrial past, and permanently reducing Port-related diesel emissions to safe levels for adjacent residential communities: estimated at **\$1.2 billion+**, a bill that should be borne by the Port of Oakland, Schnitzer Steel / Radius Recycling, BAAQMD, and the City — not the community.

Life Expectancy and Health Loss Valuation

Using the EPA's standard Value of Statistical Life methodology (\$11.6 million per life), applied to the documented elevated cancer rates and the 15-year life expectancy gap for West Oakland Black residents versus the city average, affecting an estimated population of 45,000 over 40+ years: total valuation of **\$6.8 billion**.

Category 5: Discriminatory Policing and Incarceration

The economic cost of racially disparate policing and incarceration on Black Oaklanders is calculated across multiple dimensions. Using data from the National Bureau of Economic Research, the Prison Policy Initiative, and the Stanford University OPD study:

Lost Earnings

A criminal record reduces lifetime earnings by 40% on average. Applied to an estimated 20,000 Black Oaklanders with arrest records attributable to racially disparate policing over 50 years: approximately **\$9.8 billion** in lost lifetime earnings.

Civil Settlements

Documented civil rights settlements by the City of Oakland and Alameda County related to OPD misconduct against Black residents — including the original Riders scandal that triggered federal oversight — represent the floor, not the ceiling, of acknowledged liability. The full universe of unremediated claims is estimated to be several times these amounts.

Social Cost

Disruption of Black families through incarceration carries documented intergenerational costs in education, health, and wealth accumulation. The social cost multiplier applied to the earnings loss figure yields a total Category 5 liability of approximately **\$11.7 billion**.

Category 6: Banking and Insurance Discrimination

Mortgage Loan Denial

Between 1968 and 2008, thousands of qualified Black mortgage applicants in Oakland and Alameda County were denied conventional loans or steered into subprime products due to documented discriminatory lending practices. The City of Oakland's lawsuit against Wells Fargo, Bank of America's Countrywide settlement of \$335 million nationally, and Wells Fargo's \$175 million national settlement document the scope of this harm. Lost wealth from denials and predatory loans: approximately **\$5.2 billion** in foregone equity and forced wealth transfers to lenders, compounded to present value.

Insurance Overcharges

Black homeowners and businesses in Oakland paid an estimated premium surcharge of 15–25% above actuarially justified rates due to discriminatory insurance pricing from the 1940s through the 1990s. Applied to an estimated 15,000 policyholders over 50 years: approximately **\$1.3 billion** in overcharges, compounded to present value.

Business Credit Denial

Black entrepreneurs who were denied SBA loans, commercial lines of credit, and business banking services documented in federal CRA examination records lost an estimated **\$1.6 billion** in business development opportunity, compounded to present value — a particularly severe harm given Oakland's position as a gateway to the booming California economy.

Category 7: Lost Educational Opportunity

The Calculation Framework

The educational debt is calculated using the gap in educational attainment between Black and white Oakland students from 1940 to 2000, multiplied by the documented earnings premium associated with each level of educational attainment, compounded to 2024 present value. Oakland Unified's decades of chronic underfunding in flatlands schools and the denial of equal college preparation to Black students makes this calculation particularly stark.

Educational Debt by Category

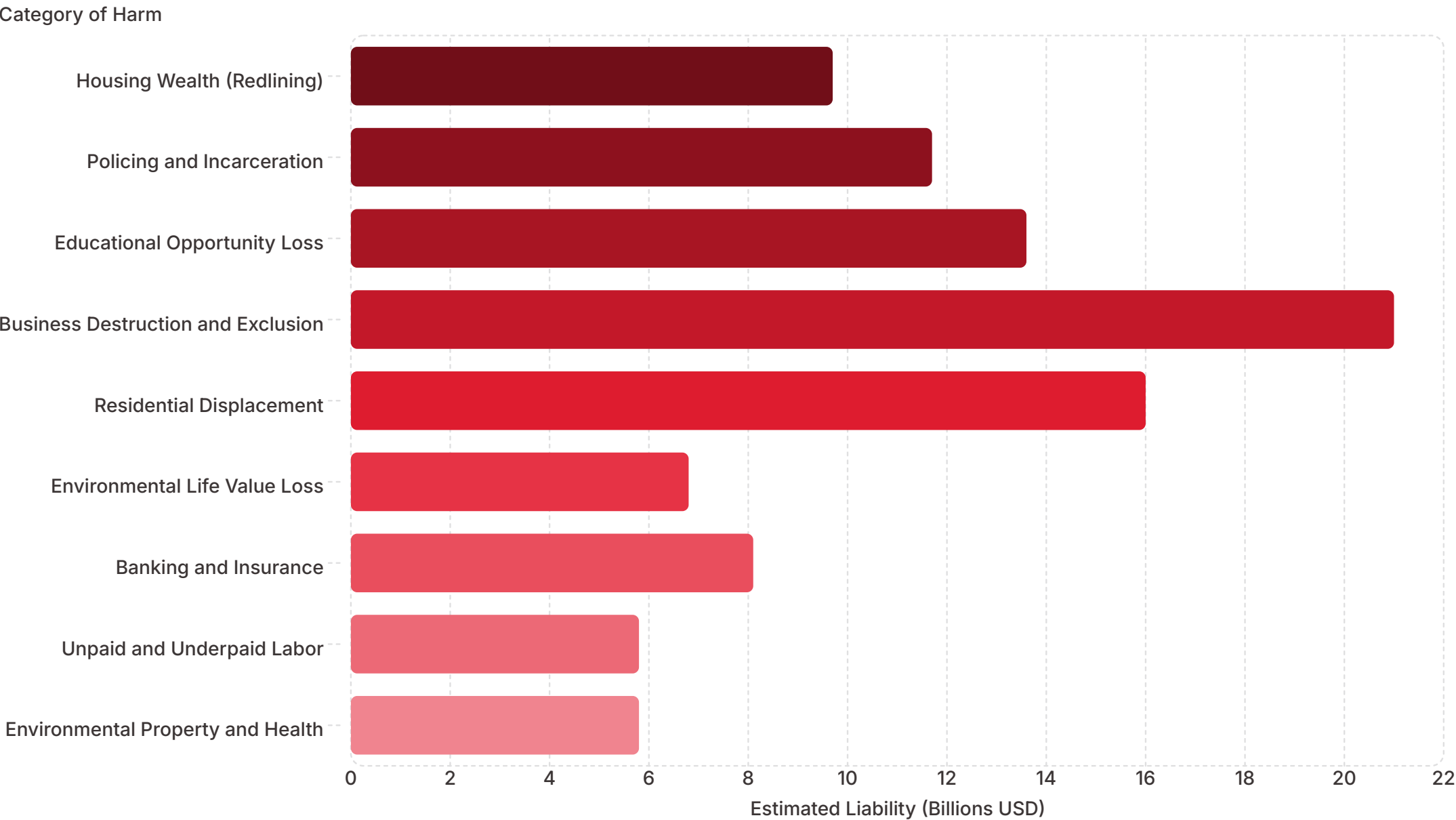
- High school graduation gap (40 years of under-resourced flatlands schools): \$6.2 billion in foregone lifetime earnings across affected cohorts
- College access gap — Black students denied equal college preparation and access to UC and CSU pathways: \$5.1 billion in foregone earnings premium
- Professional credentialing gap (exclusion from Port, shipyard, and skilled trade apprenticeships): \$2.3 billion
- Total educational opportunity loss, compounded: approximately **\$13.6 billion**



Category 8: Unpaid and Underpaid Labor

Black workers in Oakland's Kaiser Shipyards and longshoreman industry were systematically paid less than their white counterparts for equivalent work — confined by the Boilermakers Union to segregated auxiliary locals that denied them equal wages, grievance rights, advancement, and pension protections. Black longshoremen at the Port of Oakland were subject to a shape-up hiring system that white-controlled unions manipulated to exclude Black workers from the most lucrative assignments. Using Bureau of Labor Statistics historical wage data and standard discrimination adjustment methodology, the total underpaid labor liability for Black Oakland workers in shipyards, longshoring, railroads, and manufacturing between 1940 and 1968 is estimated at **\$5.8 billion** in 2024 present value.

Reparations Master Chart: All Categories Combined



These figures represent conservative, documented estimates using standard legal and economic methodologies. Each category is independently supported by federal data, academic research, and government agency records. The total represents a floor — not a ceiling — on the reparations obligation owed to Black Oaklanders. Oakland's exceptionally high real estate values and the Bay Area economy's scale make the housing and displacement figures particularly conservative relative to local conditions.

The Grand Total: What Is Owed

\$98.5B

Total Liability

The Negro Research Institute's conservative estimate of the total reparations debt owed to Black Oaklanders and Alameda County residents, across all categories of documented harm, in 2024 present value.

40,000

Eligible Residents

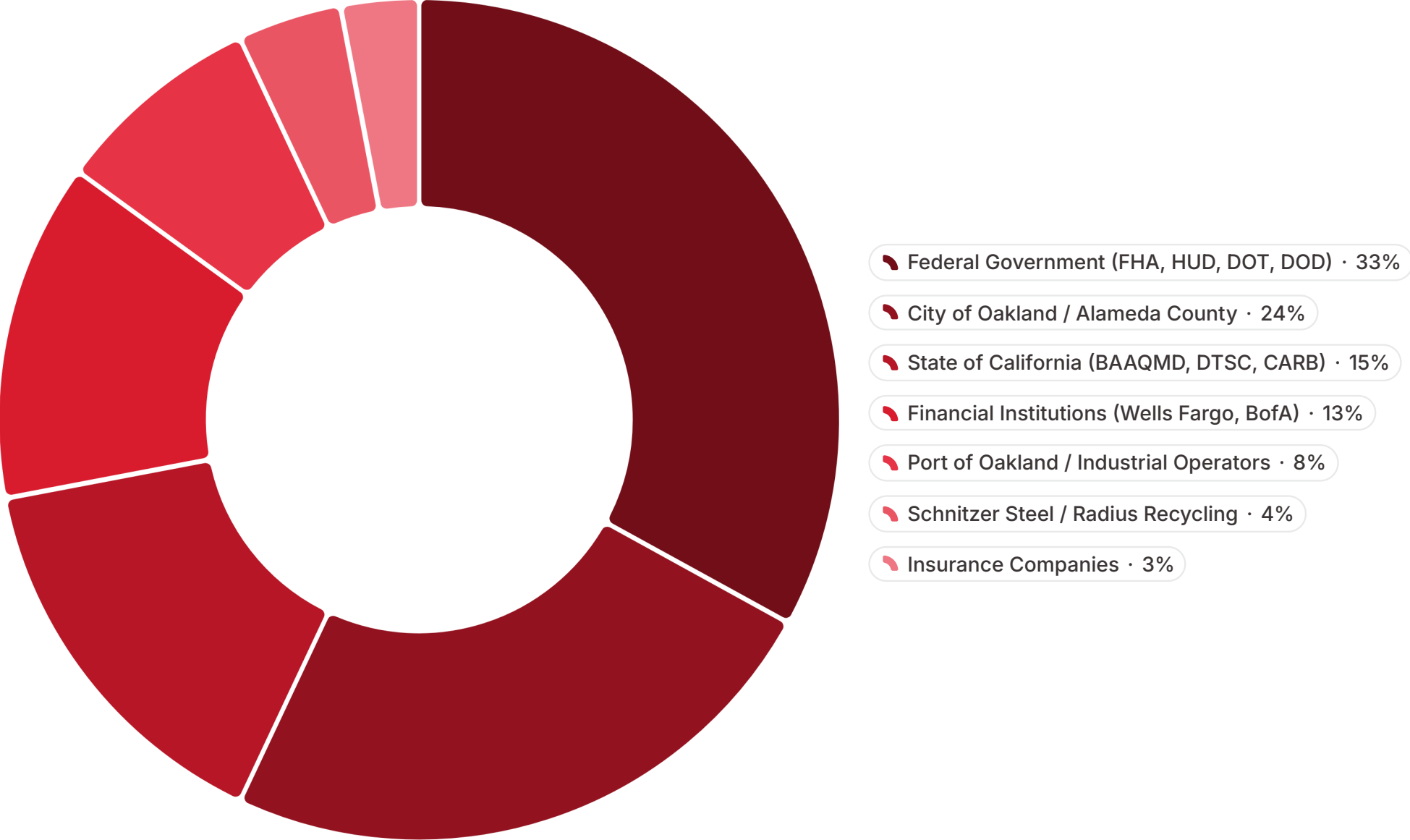
Estimated number of current and formerly resident Black Oaklanders and their direct descendants who would qualify for reparations under an eligibility framework based on residence in Oakland's historically redlined and industrially contaminated communities.

\$2.5M

Per Eligible Recipient

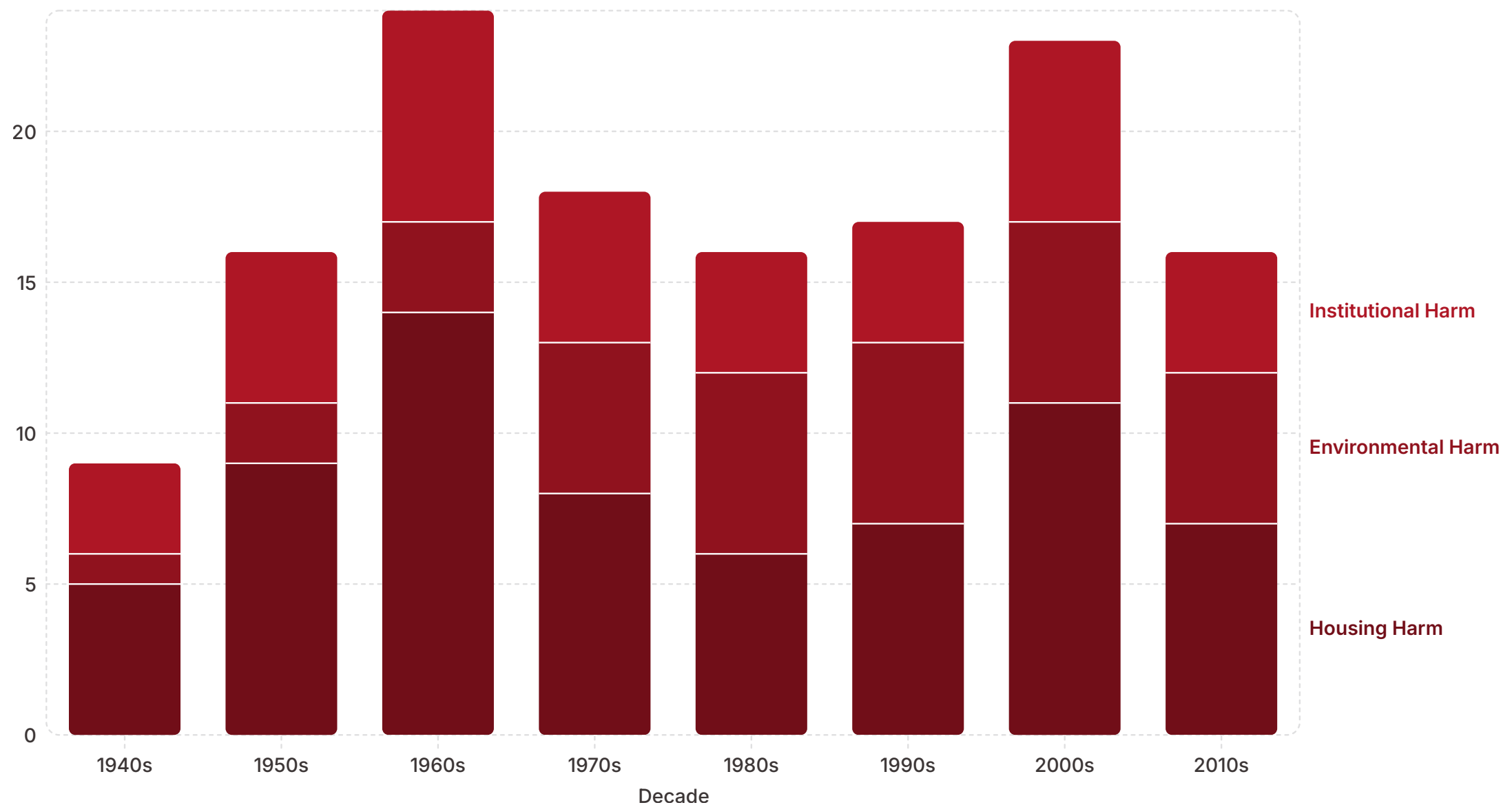
Total liability divided by eligible recipients yields approximately \$2.5 million per person — a figure that reflects the scale of documented, calculable harm imposed on Black Oaklanders over nine decades.

Reparations Liability Distribution by Responsible Party



The federal government bears the largest single share of reparations liability, given its central role in designing and enforcing redlining through the FHA and HOLC, and its direct role in funding highway displacement through the Interstate Highway System. The City of Oakland and Alameda County are the second-largest obligors, given their direct role in urban renewal demolitions, racially disparate zoning, and decades of OPD misconduct under federal oversight. The Port of Oakland bears direct liability for permitting decades of documented health harm to adjacent Black communities. No responsible party escapes liability — and none has fully acknowledged it.

Reparations Growth of Harm Over Time



This chart illustrates the accumulation of harm across three principal categories over eight decades. Note that harm did not end with the Civil Rights Act — environmental harm from Port operations, Schnitzer Steel, and industrial zoning has been actively accumulating through the 2000s and 2010s, and institutional harm from discriminatory lending peaked in the 2000s subprime crisis. The 1960s housing harm spike reflects the peak of urban renewal demolitions. The debt grows every year that it goes unpaid.

What Reparations Are and Are Not

What Reparations ARE

- A legal remedy for documented, specific harms
- A transfer of unjustly withheld wealth back to its rightful heirs
- A mechanism for closing the racial wealth gap
- Acknowledgment that racism was policy, not prejudice
- An investment in community health, housing, and education
- Consistent with American legal and constitutional tradition

What Reparations ARE NOT

- A gift or charitable transfer
- An act of guilt or blame on individual white people
- Unprecedented — America has paid reparations before
- Unaffordable — Oakland's annual budget exceeds \$1.8 billion; Alameda County's exceeds \$4 billion
- A final solution — reparations are one component of systemic repair
- Optional — they are a legal and moral obligation

The Right to Return and Community Reinvestment

Monetary reparations, while essential, are insufficient without addressing the spatial dimension of Black displacement and disinvestment in Oakland. The right to return — supported by the United Nations' Principles on Housing and Property Restitution — requires that displaced persons and their descendants have the right to reclaim their original community. For Black Oaklanders, this means the construction of permanently affordable housing in the West Oakland 7th Street corridor and the East Oakland flatlands; a dedicated land trust for Black homeownership; a first right of return for eligible descendants; the conversion of unused city-owned land in historically Black neighborhoods to community ownership; full remediation of industrial contamination sites with preference for Black community ownership and redevelopment; and zero-emission port operations that no longer impose disproportionate health burdens on adjacent Black communities. Without these structural interventions, monetary payments risk being absorbed by the very market forces that displaced Black residents in the first place.

Structural Reparations: Beyond the Check



Housing Restitution

Construction of 5,000 permanently affordable homes in historically Black West Oakland and East Oakland flatlands; a Black Community Land Trust capitalized at \$500 million; first right of purchase for displaced families in any city-funded development on formerly redlined land; and anti-displacement protections for remaining Black residents facing gentrification pressure.



Educational Investment

Free tuition at UC Berkeley, California State University East Bay, and Laney College for eligible Black residents and their descendants; a dedicated endowment for Black student scholarships; restorative curriculum in Oakland Unified and Alameda County schools that teaches the full history of Black Oakland — including the 7th Street "Harlem of the West," the Black Panther Party's founding, and the documented history of urban removal.



Economic Development

A \$750 million Black Business Development Fund providing grants and zero-interest loans; set-asides of 30% of city and county contracting for Black-owned firms; preference for Black-owned development firms in West Oakland corridor and any former industrial site remediation and redevelopment; direct reinvestment of Port of Oakland revenue into West Oakland community health and economic development.



Health and Environment

Full remediation of buried toxic soil contamination in West Oakland with independent community oversight; a community health trust of \$500 million providing free medical screening for cancer and respiratory conditions for all West Oakland residents; zero-emission Port operations on an accelerated timeline; removal of Schnitzer Steel / Radius Recycling from proximity to Black residential communities; no further industrial zoning in predominantly Black neighborhoods without community consent and compensation.

The Moral Case: Why "Moving On" Is Not an Option

"A man who robs you of your wallet does not become innocent by spending the money. A city that destroys a community does not become just by building a new stadium on the rubble. The debt does not age. The obligation does not expire. The only question is whether we have the courage to pay it."

— *Negro Research Institute*

The most common objection to reparations — that too much time has passed — collapses under the weight of the evidence in Oakland. The harms documented in this brief are not merely historical. They are active. Radius Recycling continues to operate adjacent to Black West Oakland homes. The Port of Oakland continues to concentrate diesel emissions in the Black flatlands. The racial wealth gap — created by redlining and compounded by urban renewal and the foreclosure crisis — is documented in 2024 real estate data. The life expectancy gap between Black West Oakland and the white hills is documented in current Alameda County health data. The statute of limitations does not run on a continuing tort — and the racial harm visited upon Black Oaklanders has never stopped.



The International Dimension: A Global Obligation

The world is watching American cities — not merely as local political stories, but as tests of whether American democracy can deliver justice to the people it has most profoundly wronged. The United Nations Special Rapporteur on Contemporary Forms of Racism has cited municipal-level reparations processes in the United States as models of local accountability. Governments in the United Kingdom, Canada, the Netherlands, and across the Caribbean — all former slave-trading or slaveholding states — are monitoring American reparations debates as they face their own reckonings. What Oakland does — the city where the Black Panther Party was born, where the environmental justice movement found one of its most powerful voices in Margaret Gordon and the West Oakland Environmental Indicators Project, where California's own reparations task force held key hearings — matters far beyond its borders. California has a particular obligation: it established the nation's first state-level reparations task force. Oakland has the opportunity to show the world what local implementation looks like. This is a moment of historical consequence.

Voices From the Community: Testimony on Record

“

"West Oakland has been the economic engine of the city, yet residents are victims of racist policies that expose them to life-threatening environmental pollution without their consent."

— Dorothy Lazard, Black Oaklander who grew up in West Oakland, retired managing librarian of the Oakland History Center

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"The reparation movement is the next level of civil rights. We should not be in a position of just surviving."

— Margaret Gordon, co-founder of the West Oakland Environmental Indicators Project, longtime West Oakland resident and environmental justice advocate

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"It is a lesson in discrimination, disregard and diminishment of a population that helped build the city."

— Dorothy Lazard, on the decades of deliberate environmental and economic harm inflicted on West Oakland's Black community

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The Pathway Forward: A Six-Point Action Plan

01

Pass a Binding Reparations Ordinance

The Oakland City Council must pass a binding ordinance — not a resolution — establishing direct cash payments, a reparations trust fund, and a permanent oversight body with subpoena power to enforce compliance by all city departments and contractors. The Alameda County Board of Supervisors must act on its Commission's action plan with binding appropriations, not advisory recommendations.

03

Demand Federal Co-Payment

Oakland and Alameda County must formally demand that the federal government fund its proportionate share of reparations liability — particularly for redlining (FHA/HOLC), Interstate highway displacement (DOT), and discriminatory federal contracting practices — through Congressional appropriations and executive action under California's AB 3121 framework.

05

Implement the Alameda County Reparations Action Plan

The Alameda County Board of Supervisors must move beyond approving a plan to funding and implementing it — with specific dollar amounts, timelines, and accountability mechanisms. The sluggish pace of the Reparations Commission's work since 2023 must give way to urgent action commensurate with the scale of documented harm.

02

Establish Liability Against Corporate Actors

The Oakland City Attorney and California Attorney General must file suit or open formal administrative proceedings against Radius Recycling (Schnitzer Steel), the Port of Oakland, Wells Fargo, Bank of America, and other named corporate actors for their documented roles in Black community harm. Settlement proceeds must flow directly to the reparations fund.

04

Complete Environmental Remediation and Health Compensation

Full, independently verified remediation of buried toxic sites in West Oakland must be completed under community oversight. A community health trust must be established immediately, with all costs borne by Radius Recycling, the Port of Oakland, BAAQMD, and the City — not by the residents who were poisoned. Zero-emission Port operations must be accelerated on a binding timeline.

06

Build the Black Community Land Trust

The City must transfer surplus public land in the West Oakland 7th Street corridor, the East Oakland flatlands, and all formerly redlined neighborhoods to a permanent Black Community Land Trust, capitalized at no less than \$500 million, with governance controlled by Black Oaklanders and their descendants.

Reparations Liability by Entity: The Named Defendants

Entity	Primary Harm Category	Estimated Liability (Billions)
U.S. Federal Government (FHA, HUD, DOT, DOD)	Redlining, highway displacement, contract exclusion, defense labor discrimination	32.5
City of Oakland / Alameda County	Urban renewal, environmental zoning, OPD misconduct, BART displacement	23.6
State of California (BAAQMD, DTSC, CARB)	Environmental regulatory failure, school segregation, air quality abandonment	14.8
Wells Fargo / Bank of America (Countrywide)	Mortgage discrimination, predatory lending, reverse redlining	9.1
Port of Oakland	Diesel pollution, health harm, racially disparate infrastructure siting	7.8
Schnitzer Steel / Radius Recycling	Toxic air contamination, health harm, environmental violations	5.2
Kaiser Industries / Boilermakers Union	Labor discrimination, union exclusion, wage theft in shipyards	3.7
Insurance Companies (State Farm, Allstate, etc.)	Discriminatory pricing and denial of coverage	1.8
TOTAL		98.5

Summary of the Case: The Verdict the Evidence Demands

The Record Is Clear

Every harm documented in this brief is supported by government records, court decisions, academic research, and community testimony. This is not advocacy built on grievance — it is a legal brief built on evidence. Oakland's 1937 HOLC redlining maps are documented by the University of Richmond. The OPD racial disparities are documented by Stanford University. The West Oakland cancer risk data is documented by the Bay Area Air Quality Management District. The 15-year life expectancy gap is documented by the Alameda County Public Health Department. The record is airtight.



The Law Is Clear

Unjust enrichment, tortious harm, constitutional violation, statutory civil rights violation, and international human rights law all converge on the same conclusion: the debt is real and legally enforceable. California's own AB 3121 and the Alameda County Reparations Commission's action plan acknowledge the legal and moral basis. The question is no longer whether reparations are owed — it is whether the political will exists to pay them.

The Amount Is Clear

The Negro Research Institute calculates a minimum reparations obligation of \$98.5 billion — owed by federal, state, and municipal governments and by named corporate actors — to Black Oaklanders, Alameda County residents, and their descendants.



The Time Is Now

The harm is ongoing. The diesel plume from the Port is real and present. The life expectancy gap is documented today. The obligation does not expire. Every year of delay compounds both the damage and the debt. Oakland — the city where the Black Panther Party was born, where Margaret Gordon fights for environmental justice, where California's reparations movement has found its most powerful local voice — has the opportunity to lead the nation. The question is whether it has the will.

The Closing Argument: For the Record, for the World

Submitted by the Negro Research Institute

We have presented the evidence. We have named the perpetrators. We have calculated the damages. We have identified the legal remedies. We have shown that precedent exists and that the law demands action. The case for reparations for African Americans in Oakland, California and Alameda County is not merely strong — it is **airtight**. The only question that remains is not one of law, or economics, or history. It is one of character. Will Oakland — will California — will America — be the kind of nation that honors its debts? This is the city where the Black Panther Party was born to resist police violence and feed hungry children. The city where Margaret Gordon refused to let her neighbors be poisoned in silence. The city that California chose as the heart of its reparations reckoning. The world is watching. History is recording. The verdict belongs to those who choose justice over convenience. We rest our case.